

Republic of the Philippines
CITY OF DAVAO
Office of the City Council
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December 17, 1973.

The Honorable City Mayor
City of Davao

S i r :

In pursuance of Paragraph 2, Section 15, of Republic Act No. 4354, otherwise known as the Revised Charter of the City of Davao, I have the honor to forward herewith Resolution No. 1097 and Ordinance No. 778, current series, of the City Council of Davao, for appropriate action.

Very truly yours,

Conrado A. Estuarte
CONRADO A. ESTUARTE

Assistant Secretary of the Council
on Legal and Legislative Matters

Encls. :
As stated.
01/04

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.....aal
1st Indorsement
OFFICE OF THE MAYOR - CITY OF DAVAO
December 19, 1973

Respectfully returned to the Honorable City Council,
City of Davao, approved.

By direction of the Mayor:

Ramon B. Heleno, Jr.
RAMON B. HELENO, JR.
Acting City Secretary

OFFICE OF THE CITY CLERK
12-20-73

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5th City Council of Davao
85th Regular Session
Series of 1973

Republic of the Philippines
CITY OF DAVAO
Office of the City Council
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ORDINANCE NO. 778

AN ORDINANCE AMENDING AND REVISING ORDINANCE NO. 9, SERIES OF 1948, OTHERWISE KNOWN AS THE TRAFFIC ORDINANCE OF THE CITY OF DAVAO, TO BE DESIGNATED AS THE REVISED TRAFFIC ORDINANCE OF THE CITY OF DAVAO.

Be it Ordained by the City Council, City of Davao, that:

ARTICLE I, TITLE, SCOPE OF ORDINANCE AND GENERAL PROVISION.

SECTION 1. - Title of this Ordinance. - This Ordinance shall be known as the "REVISED TRAFFIC ORDINANCE OF THE CITY OF DAVAO.

SECTION 2. - Scope of this Ordinance. - The provisions of this ordinance shall control, as far as they apply, the traffic rules and regulations of the City of Davao insofar as they are not inconsistent with the provisions of existing laws.

SECTION 3. - General Provision. - Except as otherwise provided for by existing law, no traffic rules and regulations in the City of Davao shall be implemented or enforced except by virtue of an ordinance duly approved by the City Council. The Police Department shall be charged with the duty of implementing and enforcing the provisions of this ordinance.

ARTICLE II - DEFINITIONS

Words and phrases defined. - As used in this Ordinance:

a) "Motor Vehicle" shall mean any vehicle propelled by any power other than muscular power using the streets and highways within the City of Davao, but excepting road rollers, trolley cars, street-sweepers, sprinklers, lawn mowers, bulldozers, graders, fork-lifts, amphibian trucks and cranes if not used on streets and highway, vehicles which run only on rails or tracks, and tractors, trailers and traction engines of all kinds used exclusively for

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Ordinance No. 778, series of 1973, continued:

agricultural purposes. (Land Transportation Code)

Trailers having any number of wheels, when propelled or intended to be propelled by attachment to a motor vehicle, shall be classified as separate motor vehicle with no power rating.

(Land Trans. & Traffic Code)

b) "Passenger Automobiles" shall mean all pneumatic-tire vehicles of types similar to those usually known under the following terms: touring car, command car, speedster, sports car, roadster, jeep cycle car (except motor wheel and similar small outfits which are classified with motor-cycles), coupe, landaulet, closed car, limousine, cabriolet and sedan.

Motor vehicle with changed or rebuilt bodies, such as jeepney, jitneys, or station wagons, using a chassis of the usual pneumatic-tire passenger automobile type, shall also be classified as passenger automobile if their net allowable carrying capacity does not exceed nine passengers and if they are not used primarily for carrying freight or merchandise. A motor vehicle registered for more than nine passengers shall be classified as "truck".

c) "Articulated Vehicle" shall mean any motor vehicle with a trailer having no front axle and so attached that part of the trailer rests upon the motor vehicle and a substantial part of the weight of the trailer and of its load is borne by the motor vehicle. Such a trailer shall be called as "semi-trailer".

d) "Driver" shall mean every and any licensed operator of a motor vehicle.

e) "Professional driver" shall mean every and any driver hired or paid for driving use or operating a motor vehicle, whether for private use or for hire to the public.

Any person driving his own motor vehicle for hire is a professional driver.

Ordinance No. 778, series of 1973, continued:

f) "Owner" shall mean the actual legal owner of a motor vehicle, in whose name such vehicle is duly registered.

g) "Highways" shall mean every public thoroughfare, public boulevard, driveway, avenue, park, alley and callejon, but shall not include roadway upon grounds owned by private persons, colleges, universities, or other similar institutions.

h) "Main streets" are wide continuous streets as distinguished from alleys and narrow traversing streets.

i) "Thru Streets" are streets designated as such by law or ordinance where vehicles have the right to proceed past intersection without stopping; provided, that they are duly sign posted as such.

j) "Intersection" includes every part of the public highway which joins another at an angle whether or not it crosses the other.

k) "Streets" includes every public thoroughfare, boulevard, driveway, avenue, park, parkway, plaza, square, place road, alley and callejon. The term "street" shall not be deemed to include the roadway or driveway upon grounds owned by private persons, colleges, universities or other institutions.

l) "Right of Way Street" are streets designated as such by ordinance where vehicles have the priority of passage over vehicles coming from intersection; provided, that they are duly signposted as such.

m) "Pedestrians" are all persons occupying the streets and sidewalks by walking or standing.

n) "Horn" shall include every device for signalling by sound.

o) "Pedestrian lanes" are places duly marked where pedestrians may cross the streets in safety.

p) "Safety Zones" are zones or places duly marked where

Ordinance No. 778, series of 1973, continued:

pedestrians may cross in safety or places where persons may board or alight in safety from street cars and vehicles.

q) "Parking or Parked" for the purposes of this ordinance, shall mean that a motor vehicle is "parked" or "parking" if it has been brought to a stop on the shoulder or proper edge of a highway, and remains inactive in that place or close thereto for an appreciable period of time. A motor vehicle which properly stops merely to discharge a passenger, or to take in a waiting passenger or to load or unload a small quantity of freight with reasonable dispatch shall not be considered as "parked", if the motor vehicle again moves away without delay.

ARTICLE III - SPEED LIMIT AND KEEPING TO THE RIGHT

SECTION 1. - Restriction as to speed. -

a) No person shall operate, run or drive a motor on any street in this city recklessly or without reasonable caution, considering the traffic, the width of the street, and of any other condition then and there existing; and no person shall drive any motor vehicle on any street of this city at such speed as would endanger the life, limb and property of any person or so as to cause excessive or unreasonable damage to the streets, nor at a speed greater than will permit him to bring the vehicle to a stop within the assured clear distance ahead.

b) Subject to the provision of the preceding paragraph, the rate of speed of any motor vehicle shall not exceed the following:

MAXIMUM ALLOWABLE SPEED		
PLACES	Passenger auto- mobiles & Motor Vehicles per hour	Motor Trucks & Buses per hour
1. On open country roads, with no "blind corners", not closely bordered by habitations	80 km. per hour	50 km. per hour

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Ordinance No. 778, series of 1973, continued:

MAXIMUM ALLOWABLE SPEED

PLACES	Passenger auto-	Motor Trucks
	mobiles & Motor Vehicles per hour	& Buses per hour
2. On "through streets" or boulevards, clear of traffic, with no "blind corners", when so designated.	40 km. per hour	30 km. per hour
3. On City and Municipal st., with light traffic, when not designated "through streets".	30 km. per hour	30 km. per hour
4. Through crowded streets, approach intersections at "blind corners," passing school zones, passing other vehicles which are stationary, or for similar dangerous circumstances.	20 km. per hour	20 km. per hour

c) Within a perimeter of one kilometer from the center of the commercial zone in the following barriers: Bunawan, Boril, Mintal, Tugbok and Calinan, the maximum rate of speed for passenger automobiles, jeeps or trucks shall be 15 kilometers per hour.

d) The rates of speed hereinabove prescribed shall not apply to the following:

1. A physician or his driver when the former responds to emergency calls;
2. The driver of a hospital ambulance on the way to and from the place of accident or other emergency;
3. Any driver bringing a wounded or sick person for emergency treatment to a hospital, clinic, or any other similar place;
4. The driver of a vehicle, when he or his passengers are in pursuit of a criminal;
5. A law-enforcement officer who is trying to overtake a violator of traffic laws and

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Ordinance No. 778, series of 1973, continued:

6. The driver officially operating a motor vehicle of any fire department, provided that exemption shall not be construed to allow useless or unnecessary fast driving of drivers of aforementioned.

SECTION 2. - Keeping to the right. - Unless a different course of action is required in the interest of the safety and the security of life, person or property, or because of unreasonable difficulty of operation in compliance herewith, every person operating a motor vehicle or an animal-drawn vehicle on any street or highway of this city shall pass to the right when meeting persons or vehicles coming toward him, and to the left when overtaking persons or vehicles going the same directions, and when turning to the left in going from one street or highway to another, every vehicle shall be conducted to the right of the center of the intersection of the street or highway.

ARTICLE IV - OVERTAKING AND PASSING A
VEHICLE, AND TURNING AT INTERSECTIONS

SECTION 1. - Overtaking a vehicle. - The driver of any motor vehicle overtaking another vehicle proceeding in the same direction shall pass at a safe distance to the left thereof, and shall not again drive to the right side of the street or highway until safely clear of such overtaken vehicle, except that, on a street or highway, within a business or residential zone, having two or more lanes for the movement of traffic in one direction, the driver of a vehicle may overtake and pass another vehicle on the right. Nothing in this section shall be construed to prohibit a driver overtaking and passing, upon the right, another vehicle which is making or about to make a left turn.

SECTION 2. - Driver to give way to overtaking vehicle. -
The driver of a vehicle about to be overtaken and passed by another

Ordinance No. 778, series of 1973, continued:

vehicle approaching from the rear shall give way to the overtaking vehicle on suitable and audible signal being given by the driver of the overtaking vehicle, and shall not increase the speed of his vehicle until completely passed by the overtaking vehicle.

SECTION 3. - Restrictions on overtaking and passing. -

a) The driver of a vehicle shall not drive to the left side of the center line of a street or highway in overtaking or passing another vehicle proceeding in the same direction, unless such left side is clearly visible, and is free of incoming traffic for a sufficient distance ahead to permit such overtaking or passing to be made in safety.

b) The driver of a vehicle shall not overtake or pass another vehicle proceeding in the same direction, when approaching the crest of a grade; nor upon a curve in the street or highway where the driver's view along the street or highway is obstructed within a distance of five hundred feet ahead, except on a street or highway having two or more lanes for movement of traffic in one direction where the driver of a vehicle may overtake or pass another vehicle.

c) The driver of a vehicle shall not overtake or pass any other vehicle proceeding in the same direction, at any railway grade crossing, nor at any intersection of streets or highway, unless such intersection or crossing is controlled by traffic signal, or unless permitted to do so by a watchman or a peace officer, except on a street or highway having two or more lanes for movement of traffic in one direction where the driver of a vehicle may overtake or pass another vehicle on the right. Nothing in this section shall be construed to prohibit a driver overtaking or passing, upon the right, another vehicle which is making or about to make a left turn.

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Ordinance No. 778, series of 1973, continued:

d) The driver of a vehicle shall not overtake or pass, or attempt to pass, any other vehicle, proceeding in the same direction, between any points indicated by the placing of official temporary warning or caution signs indicating that men are working on the street or highway.

e) The driver of a vehicle shall not overtake or pass, or attempt to overtake or pass, any other vehicle proceeding in the same direction in any, "no passing or overtaking zone".

SECTION 4. - Turning at intersections. -

a) The driver of a vehicle intending to turn to the right at an intersection shall approach such intersection in the lane for traffic nearest to the right-hand side of the street or highway and, in turning, shall keep as close as possible to the right-hand curb or edge of the highway.

b) The driver of a vehicle intending to turn to the left shall approach such intersection in the lane for traffic to the right of and nearest to the center line of the street or highway, and in turning, shall pass to the left of the center of the intersection, except that, upon streets or highways laned for traffic, and upon one-way streets or highways, a left turn shall be made from the lane of traffic in the direction in which the vehicle is proceeding, provided, however, that in the following streets of the City making a LEFT TURN is prohibited:

- A - Quirino Avenue towards San Pedro Extension;
- B - San Pedro Extension towards Quirino Avenue;
- C - Mt. Apo St., from Malvar St. towards Quirino Avenue;
- D - San Pedro St. to Pantaleon Pelayo, Sr., St.;
- E - Pantaleon Pelayo, Sr. to San Pedro St.;

Ordinance No. 778, series of 1973, continued:

- F - San Pedro St. to F. Mingo St.;
- G - F. Mingo St. to San Pedro St.;
- H - San Pedro St. to C. M. Recto St.;
- I - C. M. Recto St. to Bonifacio St.;
- J - Bonifacio St. to C. M. Recto St.;
- K - C. M. Recto St. to Palma Gil St.
towards Jone Circle;
- L - C. M. Recto St. to Palma Gil St.
towards Antonio Pichon, Sr., St.;
- M - Palma Gil St. to C. M. Recto St.;

c) For the purpose of this section, the center of the intersection shall mean the meeting point of the medial lines of the streets or highway intersecting one another, except when it is occupied by a monument, grass plot or any permanent structure, other than a traffic control device.

ARTICLE V - ONE WAY STREETS, THRU STREETS
AND MAIN STREETS

SECTION 1. - The following are "ONE WAY STREETS:"

- a) Private Alley (Bankerohan Market) from corner Bago Mingo St. towards Antonio Pichon, Sr., St.;
- b) Antonio Pichon St. towards Rasay St.;
- c) Cayetano Bangoy St. (Crooked Road) towards San Pedro St.;

SECTION 2. - The following are thru streets or main streets:

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|------------------------|-------------------------|
| 1) C. M. Recto | 5) Piapi Boulevard |
| 2) San Pedro | 6) Quirino Avenue |
| 3) Antonio Pichon, Sr. | 7) Dr. V. Tionke Avenue |
| 4) Magsaysay Avenue | 8) Water Street |

SECTION 3. - No passenger buses except school buses shall pass along San Pedro and C. M. Recto Streets. No TPU passenger

Ordinance No. 770, series of 1973, continued:

bus or cargo truck shall pass along Sta. Ana Avenue from corner Chavez St., to the corner of L. Guerrero St. from 6:00 A. M. to 6:00 P.M.

ARTICLE VI - RIGHT OF WAY OF SIGNALS

SECTION 1. - Right of Way. -

a) When two vehicles approach or enter an intersection at approximately the same time, the driver of the vehicle on the left shall yield the right of way to the vehicle on the right, except as otherwise hereinafter provided. The driver of any vehicle traveling at an unlawful speed shall forfeit any right of way which he might otherwise have hereunder.

b) The driver of any vehicle upon a street or highway within a business or residential zone shall yield the right of way to a pedestrian crossing such street or highway within a cross-walk, except at intersections where the movement of traffic is being regulated by a peace officer or by traffic signal. Every pedestrian crossing a street or highway within a business or residential zone, at any point other than a cross-walk, shall yield the right of way to vehicles upon such street or highway.

c) The driver of a vehicle upon a street or highway shall bring to a full stop such vehicle before traversing any "through street": provided that when it is apparent that no hazard exists, the vehicle may be slowed down to five miles per hour instead of bringing it to a full stop.

SECTION 2. - Exception to the right of way. -

a) The driver of a vehicle entering a street or highway from a private road or drive shall yield the right of way to all vehicles approaching on such street or highway.

b) Police, fire department, ambulance answering fast or

Ordinance No. 778, series of 1973, continued:

emergency call, any vehicle carrying government mails or telegrams and properly marked public utility emergency wagons answering fire calls shall have the right of way in any street of the city. The drivers of these vehicles shall not ring their alarm signals unless they are answering emergency calls. Fire apparatus going to and from the scene of fire have the right of way over all other vehicles.

c) The driver of a vehicle entering a "through street" or a "stop intersection" shall yield the right of way to all vehicles approaching in either direction on such "through street".

d) Passenger vehicles shall have the right of way over freight vehicles, and occupied passenger vehicles shall have the right of way over empty ones. Fast moving vehicles shall have the right of way over vehicles which ordinarily travel slower than the faster moving vehicles. Vehicles ascending or descending approaches to the bridges shall have the right of way over vehicles traveling on the level. Vehicles on the main streets shall have the right of way over vehicles coming from the side streets.

SECTION 3. - Signals. -

a) The driver of any vehicle on any street, before starting, stopping or turning from a direct line, shall first see that such movement can be made in safety, and if any pedestrian may be affected by such movement, shall give a clearly audible signal by sounding the horn, and whenever the operation of any other vehicle approaching or following may be affected by such movement, shall give a signal visible to the driver of such other vehicles of the intention to make such movement.

b) The signal herein required shall be given by means of extending the hand and arm beyond the left side of the vehicle, or by an approved mechanical or electrical signal-device.

Ordinance No. 778, series of 1973, continued:

c) No driver of vehicles in motion desiring to make a U-turn, shall be permitted to do so unless they give a signal at ten (10) meters before reaching the point where they desire to turn and shall keep the signal until the moment of turning.

ARTICLE VII - FORMS OF PARKING

SECTION 1. - There are two forms of parking allowed in the City of Davao, namely:

1. Parallel or along side
2. Oblique parking or parking by oblique angle

SECTION 2. - Diagonal parking or any other form of parking is prohibited.

**ARTICLE VIII - PROHIBITION AGAINST IMPROPER
SOUNDING OF AUTOMOBILE HORNS AND THE USE
OF SIREN OR SIRENS**

SECTION 1. - Prohibition against improper sounding of automobile horns. - No person shall sound an automobile horn or other signalling device in private alleys, court or hospital zone, or driveways on which dwelling abound, while the vehicle is not in motion, and in public streets, plazas or other public places, while the vehicle is not in motion, except in so far as may be answering signals in traffic.

SECTION 2. - The use of siren or sirens. - It shall be unlawful for any operator, or any driver to use or cause to be used any device known as siren (sirens) or exhaust or compression whistle in any street or places within the City limits: provided, that the provision of this paragraph shall not apply to police or fire department vehicles, ambulance and fire wagons.

**ARTICLE IX - POLICE FIRE APPARATUS AND FIRE
HYDRANTS; VEHICLES CONSIDERED ABANDONED.**

SECTION 1. - No person shall destroy, mutilate, tamper with,

Ordinance No. 778, series of 1973, continued:

defuse, send any false alarm over, or otherwise injure or wrongfully use any apparatus or any part of any public or fire alarm and fire hydrants, nor shall any person obstruct the approach to any of such apparatus and fire hydrants or any part thereof, by halting any conveyance or other construction of a boulevard, drive, square, street, or alley in front of or within three meters to either side of, same, or otherwise.

SECTION 2. - Vehicles considered abandoned. - All motor vehicles not being used under the care of some responsible person and which are found in any of the following conditions shall be considered abandoned:

a) A motor vehicle parked in such a manner as to block or interfere with the free movement of vehicular or pedestrian traffic;

b) A motor vehicle which for any cause is unable to proceed under its own motive power and is left on a street or public place for more than twelve hours;

c) A motor vehicle left in that portion of a street or other public place where signs of "NO PARKING", "LOADING AND UNLOADING ZONE", "SAFETY ZONE" or "FIRE ZONE" are established and properly marked or signposted;

d) A motor vehicle left in any street or public place obstructing or impeding the passage or right of travel of any vehicle or person on any street, driveway, or public place.

ARTICLE X - ACCESSORIES OF MOTOR VEHICLES

SECTION 1. - Every motor vehicle must be equipped with the following accessories:

a) Tires of motor vehicles. - No motor vehicles with metallic tires shall be operated upon any street within the City and solid tires whenever used shall be of sufficient thickness to

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Ordinance No. 778, series of 1973, continued:

prevent the metal rims thereof from coming in direct contact with the road.

b) Brakes. - Every motor vehicle with four or more wheels shall be provided with dual hydraulic brake system so that in case of hydraulic line failure affecting the braking efficiency of any of the four wheels at least either the front or rear retain normal braking capabilities. In the absence of such dual braking systems every motor vehicle with four or more wheels shall be provided with safety valve devices of such design and make so that failure of the hydraulic braking parts of the system will not affect all wheel but rather render at all time affective the braking power of either the two front wheels or the two rear wheels when brakes are applied. This requirement, however, does not apply to motor vehicles equiped with pneumatic braking system.

c) Horns. - Every motor vehicle shall be provided with a horn or signalling device in good working order: Provided, however, That no horn or signalling device emitting an exceptionally loud, starting, or disagreeable sound shall be installed or used on any motor vehicle, the blowing of horns in front of schools, churches, hospitals, courts and the legislative building (the City Council while in session) shall be prohibited.

d) Headlights. - Every motor vehicle of more than one meter of projected with, while in use on any street within the city shall bear two headlights, one on each side, with white or yellowish light visible from the front, which not later than one-half hour after sunset and until at least one-half hour before sunrise and whenever weather conditions so require, shall both be lighted.

Additional lamps and light may be carried, but no red lights shall be visible forward or ahead of the vehicle. Trucks, buses,

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Ordinance No. 778, series of 1973, continued:

trailers, and other similar vehicles must carry, while in use on any street or highway within the city during nighttime colored riding lights on each of the four corners not more than ten centimeters from the top.

All motor vehicles shall be equipped with devices for varying the intensity of light, and the driver must dim the headlights or tilt the beams downward whenever the vehicle is being operated on well-lighted streets within the limits of the city, or whenever such vehicle meets another vehicle on any street or highway;

e) Tail lights. - Every vehicle and trailer shall, during the hours mentioned also bear on each side in the rear a lamp showing a red light visible at least one hundred meters from the rear of the vehicle and a lamp throwing a white light upon the number plate issued for such vehicle.

f) Stop lights. - Every motor vehicle shall be equipped at the rear with at least one lamp which shall throw a sustained bright red light visible under all conditions, even under bright sunlight, when brakes are applied. Each bus, truck, trailer, or similar vehicle shall be equipped as its stop light at or near its rear center with a lamp at least twelve centimeters in diameter with the word "stop" inscribed in the center.

g) Motorcycle and other vehicle lights. - Every motor vehicle of less than one meter of projected width shall be subjected to the preceding provisions of this section, except that one headlight and one tail light shall be required. No signal light shall be necessary.

h) Lights when parked or disabled. - Appropriate parking lights or flares visible one hundred meters away shall be displayed at a corner of the vehicle whenever such vehicle is parked on high-

Ordinance No. 778, series of 1973, continued:

ways or in places that are not well-lighted or is placed in such manner as to endanger passing traffic.

i) Windshield wiper. - Every motor vehicle shall be equipped with a mechanically or electrically operated device for wiping off raindrops or other moisture from its windshield.

j) Use of red flag. - Whenever the load of any vehicle extends more than one meter beyond the bed or body thereof, there shall be displayed at every projecting end of such load a red flag not less than thirty centimeters both in length and width, except that during the hours fixed under subsection (d), there shall be displayed in lieu of the required red flags, red lights visible at least fifty meters away.

k) Mufflers. - Every motor vehicle propelled by an internal combustion engine shall be equipped with a muffler, and whenever said motor vehicle passes through any street in the city, or thickly populated zones, the muffler shall not be cut or disconnected. No motor vehicle shall be operated in such a manner as to cause it to emit or make any unnecessary or disagreeable odor, smoke or noise.

ARTICLE XI - OPERATION OF MOTOR VEHICLES

SECTION 1. - All motor vehicles and other vehicles must be registered. - No motor vehicle shall be used or operated on any street or highway within the city of Davao unless the same is properly registered for the current year.

SECTION 2. - Duty to procure license. - Except as otherwise specifically provided for by existing law, no person shall operate any motor vehicle without first procuring a license to drive a motor vehicle the current year, nor while such license is delinquent, invalid, suspended or revoked.

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Ordinance No. 778, series of 1973, continued:

SECTION 3. - Driving or parking on sidewalk. - No person shall drive or park a motor vehicle upon or along any sidewalk, path, or alley not intended for vehicular traffic or parking.

SECTION 4. - Driving while under the influence of liquor or narcotic drug. - No person shall drive a motor vehicle while under the influence of liquor or narcotic drug.

SECTION 5. - Obstruction of traffic. - No person shall drive his motor vehicle in such manner as to obstruct or impede the passage of any vehicle, nor, while discharging or taking on passengers or loading freight, obstruct the free passage of other vehicles on the street or highway.

SECTION 6. - Carrying of passengers and freight on top of vehicles. - No person operating a motor vehicle shall allow any passenger to ride on the cover or top of such vehicle. Baggage or freight may be carried on the top of a truck subject to the conditions contained in the permit issued by the proper authorities.

SECTION 7. - Riding on running boards. - No driver shall permit any person to ride on the running board, step board, or mudguard of his motor vehicle for any purpose except to make repair or adjustment in the motor or to collect fares.

SECTION 8. - Passenger or freight capacity marked on vehicle. All passenger automobiles for hire shall have the registered passenger capacity plainly and conspicuously marked on both sides thereof, in letters and numerals not less than five centimeters in height.

All motor trucks, whether for passenger or freight, private, or for hire shall have the registered passenger gross and net weight capacities plainly and conspicuously marked on both sides thereof in letters and numerals not less than five centimeters in height.

Ordinance No. 778, series of 1973, continued:

SECTION 9. - Exceeding registered capacity. - No person operating any vehicle shall allow more passengers or freight or cargo in his vehicle than its registered carrying capacity.

SECTION 10. - No one, in any street or highway, shall drive a vehicle that is so covered or loaded in or constructed as to prevent the driver thereof from having a sufficient view of the traffic in the front following and at the sides of such vehicle.

SECTION 11. - No one shall load his vehicle, in such a manner as will render said vehicle unable to proceed on the approaches of the bridge.

SECTION 12. - No one shall so load a vehicle with iron or other material that may strike together without properly deadening it so that it shall cause no unnecessary noise, nor allow any portion of the load to strike or drag upon any street.

SECTION 13. - Owners of vehicle must know the names and addresses of their drivers or operators and must furnish them to any peace officer when demanded in connection with the investigation of crimes or accident.

SECTION 14. - No professional driver or operator shall permit any unlicensed person to drive the motor vehicle, or permit a person sitting beside him or in any other part of the car to interfere with him in the motor vehicle.

SECTION 15. - All motor power shall be stopped in every motor vehicle whenever the same is unattended on any street.

SECTION 16. - No driver or operator of a public vehicle shall smoke while his vehicle is in motion and actually occupied with passengers.

SECTION 17. - Hitching to a vehicle. - No person shall hang

Ordinance No. 778, series of 1973, continued:

on to, or ride on, the outside or the rear end of any vehicle, and no person on a bicycle, roller skate or other similar device, shall hold fast to or hitch on to any moving vehicle, and no driver shall knowingly permit any person to hang on to, or ride on, the outside or rear end of his vehicle or allow any person on a bicycle, roller skate or other similar device to hold fast or hitch to his vehicle.

SECTION 18. - The passage of any bicycle made for one person ridden by more than one person in all streets of the City of Davao at all hours of the day or night is prohibited. For the purposes of this ordinance, every bicycle shall be regarded as a vehicle to all rules and regulation relating thereto.

SECTION 19. - No vehicle carrying explosives shall be permitted to stand or remain on any street more than one-half hour at a time. Such vehicle shall display upon them, at each end of said vehicle, a red flag during day time and a white flag during night time, said flags be not less than fifty centimeters square and bearing the words "danger".

SECTION 20. - No cart or other vehicle used for carrying putrid or offensive materials, night soil or the contents of any water or earth closets, privy, vault, cesspool, or having in them any other noxious substances shall occupy an unreasonable time in loading or unloading or in passing along any street or through any inhabited place or area, nor shall any unexcessive number of such carts or vehicles gather before any residence, building, or place of business.

SECTION 21. - No racing of any kind of vehicle is permitted on any street or public ground in the City of Davao, except when duly authorized by law or ordinance.

SECTION 22. - No person shall knowingly drop, place or throw

Ordinance No. 778, series of 1973, continued:

or cause to be dropped, placed, scattered, or thrown upon any street, any tacks, nails, wire, scrapped metals, glass crockery, or any other substance of things injurious to the feet of persons or animals or to the tires of wheels of vehicles.

SECTION 23. - No person shall maliciously puncture or cut or otherwise injure the tire, mar the finish or purposely damage, disconnect, or take away any part of a motor vehicle without the permission and consent of the owner.

SECTION 24. - Unless otherwise provided by a city ordinance, every TPU passengers, bus, shall slow down at the corner of every street before crossing the intersection, and shall stop regularly marked stopping places for such vehicles, whenever requested, signalled, or motioned by any person standing on such appropriated corner or duly marked place of stop, for the purpose of boarding such TPU passenger bus or when signalled by the conductor to stop to take on or leave off passengers in every such instance such TPU passenger bus shall remain stationary for a sufficient length of time to enable such passengers to board or leave safely; Provided, That nothing in this paragraph shall be so construed as to permit a driver of any TPU passenger bus to stop his vehicle beyond the building line at a street intersection.

SECTION 25. - Motor vehicles registered under the classifications of (a) private passenger automobiles; (b) private trucks; and (c) private motorcycles or motor wheel attachments shall not be used "for hire" under any circumstances and shall not solicit or accept passenger or freight for pay.

SECTION 26. - Every TPU passenger bus, for the convenience of passengers shall be distinctly numbered both inside and outside, and shall be provided with signs of large plain letters on the front of a size sufficient to be easily read at a distance of not

Ordinance No. 778, series of 1973, continued:

less than thirty meters, to indicate the streets or routes upon which the same shall run; and in the night every car and TPU passenger bus is hereby required to be furnished and equipped with an illumination sign designated in letters of a size to be plainly read at a distance of not less than thirty meters, the route of the same.

SECTION 27. - No person shall spit or expectorate on the floor, sides, or steps of any public vehicles, or place feet upon the seat or back. Notice of this provision shall be conspicuously placed by the owner or operator in each and every TPU Passenger bus.

SECTION 28. - The driver, conductors, and employees of any TPU bus company shall use all reasonable care and diligence to prevent injury to persons and property, and on the appearance of danger to any person, or any property, and said TPU passenger bus shall be stopped. All proper care should be used by such drivers, conductors and employees to prevent injury to times and damages to wagons, carriage, and other vehicles.

SECTION 29. - No person having the control of any vehicle shall negligently allow it to go against the run of any person, vehicle, or other thing whatsoever; nor shall any such person fail to stop his car, or vehicle at any place in a street when directed by a police officer.

SECTION 30. - Conductors shall not permit the placing or transporting on any car or public service passenger bus of a package or bundle which interferes with the reasonably free passage or comfort of any person on a car, in accordance with the Public Service Commission rules and regulations and no person after having been notified by any conductor to remove any objectionable package or bundle from a car, shall persist in keeping the same thereon.

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Ordinance No. 770, series of 1973, continued:

SECTION 31. - Conductors shall exert every effort not to allow their passengers to leave any car while the same is in motion.

SECTION 32. - Dogs and other animals shall not be allowed on the passenger busses. Passengers carrying game cocks riding on the passenger busses shall be designated to the use of the rear seats to avoid inconvenience to the other passengers.

SECTION 33. - Every public vehicles shall transport, without extra charge, reasonable baggage not in excess of twenty-five to assist in loading and unloading such baggage.

SECTION 34. - The driver of any public vehicle which is not occupied shall admit to his vehicle all persons belonging to the same group or party, for which there are seats in his vehicle: Provided, That he shall not be compelled to admit:

- a) Any intoxicated person, except by order of the police;
- b) Any person whose body or clothing is in such a condition as would render the vehicle unfit for further use;
- c) Any person to the driver's seat or box.

SECTION 35. - The drivers of public vehicles shall not admit therein any person known to be affected with a reportable or communicable disease.

SECTION 36. - If a passenger of any public vehicle becomes disorderly or abusive, attempts to forcibly occupy the driver's seat, or in any way disturb the peace, the driver may suspend the trip and notify the police.

SECTION 37. - The authorized schedule of rates shall be kept about the vehicles at all times when in use and it shall be unlawful to demand any pay for the use of such vehicle unless such schedule of rates is presented to the persons using such vehicle upon his request.

Ordinance No. 778, series of 1973, continued:

**ARTICLE XII - NO PARKING ZONES AND LOADING
AND UNLOADING ZONES**

SECTION 1. - Parking zones. - No driver shall park a vehicle or permit it to stand, whether attended or unattended, upon any street in any of the following places:

- a) Within an intersection
- b) On a crosswalk
- c) Within six meters of the intersection of curb lines
- d) Within four meters of the driveway entrance to any fire station
- e) Within four meters of fire hydrant
- f) In front of a private driveway
- g) On the roadway side of any vehicle stopped or parked at the curb or edge of the street or highway
- h) Main entrances of theaters, cinematographs, stadium, banks, schools, churches, and offices and public buildings during the period of performance in theaters, cinematographs and stadium, during banking hours, during class hours in schools, during services in churches and during office hours.
- i) Main entrance of court buildings during session hours, and main entrance of hospitals, properly marked or signposted and main entrances of buildings where the City Council is in session.
- j) At any place where official signs have been erected or place prohibiting parking, in the following places:

- 1. Corner San Pedro-Quirino Avenue to corner Bata Raga-Quirino Avenue.

Ordinance No. 778, series of 1973, continued:

NO PARKING BOTH SIDES

2. Corner Quirine Ave. - San Pedro St.
to corner Quirine Ave., Mt. Apo St.
NO PARKING - left side going towards
Mt. Apo St.
3. Corner A. Mabini - Quirine Ave. to
corner J. P. Laurel-Quirine. **NO
PARKING BOTH SIDES**
4. Corner J. P. Laurel - Sta. Ana Ave.
NO PARKING BOTH SIDES - 20 meters
from corner J. P. Laurel - Sta. Ana Ave.
5. Corner San Pedro- Quirine Ave. to
Generoso bridge. **NO PARKING BOTH SIDES**
6. Corner Quirine Ave. - Antonio Pichon, Sr.
St. **NO PARKING SIDE FROM** Antonio Pichon,
Sr., St. towards Quirine Ave.
7. 50 meters from corner Quirine Ave. - San
Pedro St. **NO PARKING BOTH SIDES**
8. Rassy St. - **NO PARKING BOTH SIDES**
9. **NO PARKING** along Marfori St. left side
towards Antonio Pichon, Sr., St.
10. **NO PARKING** along Data Bago St. from
corner Quirine Ave. - Data Bago St. up
Marfori private alley
11. **NO PARKING** along San Pedro St., right side
going towards C. M. Recto St.
12. **NO PARKING** left side along C. M. Recto from
corner San Pedro St., to corner Rival St.

Ordinance No. 778, series of 1973, continued:

13. NO PARKING Right side along C. M.
Recto St. from corner Rizal St. to
corner Bonifacio St.
14. NO PARKING left side along C. M.
Recto St. from corner Bonifacio St.
to corner Palma Gil St.
15. NO PARKING Right side along C. M.
Recto St. from corner Palma Gil St.
to corner Roxas Ave.
16. NO PARKING Both sides from corner
Roxas Ave. to corner Villa-Abrille St.
17. NO PARKING BOTH SIDES Corner C. M.
Recto St. going towards Cayetano Bangoy
St. up to the end of island along Caye-
tano Bangoy St.
18. NO PARKING BOTH SIDES Corner C. M.
Recto St. going towards Magway Ave.
up to the end of island
19. NO PARKING BOTH SIDES 7:00 A. M. to
7:00 P.M. along Cayetano Bangoy Extension
(Crooked Road) After 7:00 P. M. RIGHT SIDE
PARKING ONLY going towards San Pedro St.
20. NO PARKING BOTH SIDES Corner C. M. Recto
St. - Bonifacio St. to corner Bolton St.-
Bonifacio St.
21. NO PARKING on the right side of Ilustre St.
from the corner of San Pedro St., going to-
wards Gen. Luna St. to a point immediately
after Galaxy Theater

Ordinance No. 778, series of 1973, continued:

Provided, however, that the prohibition of NO PARKING as provided for herein shall be only from 6:00 A. M. to 6:00 P. M., except those provided for in paragraphs (a) to (i) of this section.

SECTION 2. - LOADING AND UNLOADING ZONES. - It shall be unlawful for any driver to violate the prohibition of "LOADING AND UNLOADING ZONES". The "LOADING AND UNLOADING ZONES" herein designated by the City Council are the followings:

1. From corner Belton-San Pedro St., to
1st post of Banco Filipino
2. From 6 meters corner Gayetano Bangoy
(Crooked Road) to 1st post of New
Cristina.
3. From Davao Light Post No. 30-12 to
Anthony Chan Building (International
Restaurant Post No. 2)
- 4) From Davao Light Post No. 30-16 to 2nd
post of Luis Pineda Building.
- 5) From Davao Light Post No. 30-20 to 4th
post of Bergally Building
- 6) From Davao Light Post No. 30-22 to 6
meters corner Pantaleon Pelayo, Sr., St.-
San Pedro St.
- 7) From 6 meters corner Pantaleon Pelayo, Sr.
St. to 7th post of Luis Pineda Building.
- 8) From 1st post of Macdasa Building to 6
meters corner San Pedro-Ilustre Sts.
- 9) Along C. M. Macete St. the loading and un-
loading zones are the same areas already
designated as No Parking Zones.

Ordinance No. 778, series of 1973, continued:

ARTICLE XIII - RIGHTS AND DUTIES
OF PEDESTRIANS ON PUBLIC PLACES

SECTION 1. - Right of pedestrians. - The roadway of highways and streets are primarily intended for vehicles, but pedestrians have the right to cross them in safety, and drivers of vehicles must exercise all possible care not to injure pedestrians.

SECTION 2. - Duties of pedestrians. - Pedestrians should cross pedestrian lanes which are herein designated in the following places:

1. On all four sides of main city streets intersected by side streets;
2. On all corners of side streets;
3. The pedestrian lanes in front of schools;
4. In front of courts;
5. In front of the Veterans Bank;
6. In front of Melave Kitchenette along C. M. Roste St.;
7. In front of Rizal Banking Corp.;
8. In front of Imperial Hotel;
9. In front of Otero Hardware, along Magsaysay Avenue;
10. In front of Capitol Restaurant along Magsaysay Avenue;
11. In front of Bergally Building along San Pedro St.;
12. In front of International Restaurant along San Pedro St.;
13. Between Joaquin & Sons building and Recinas building (near Diosdado Commercial)

Ordinance No. 778, series of 1973, continued:

14. In front of the Doctors Hospital along
Quirino Avenue;
15. In front or in the vicinity of the gates
of all schools, public and private.

ARTICLE XIV - MISCELLANEOUS TRAFFIC RULES

SECTION 1. - Traffic Signs. - All traffic signs shall hereinafter be placed exclusively by the Traffic Division of the Police Department and on appropriate areas designated by the provisions of this Ordinance or on such areas which may later on be designated by the City Council.

All traffic signs shall be uniform in color and shall carry the ordinance number, "Ordinance No. 778, series of 1973", for the information of the public.

It shall be prohibited for any person or entity other than the Traffic Division of the Police Department to place any traffic sign in the City of Davao.

SECTION 2. - Reckless driving. - No person shall operate a motor vehicle on any street or highway within the city recklessly or without reasonable caution considering the width, traffic, grades crossing, curvatures, condition of the atmosphere and weather, or so as to endanger the property or the safety or rights of any person or so as to cause excessive or unreasonable damage to the street or highway.

SECTION 3. - Tampering with vehicle. - No unauthorized person shall sound the horn, handle the levers or set in motion or in any way tamper with or damage or deface any motor vehicle.

SECTION 4. - Duty of driver in case of accident. - In the event that any accident should occur as a result of the operation of a motor vehicle upon a street or highway, the driver shall stop

Ordinance No. 778, series of 1973, continued:

immediately, and, if requested by any person present, shall show his driver's license, give his true name and address and also the true name and address of the owner of the motor vehicle.

No driver of a motor vehicle concerned in a vehicular accident shall leave the scene of the accident without aiding the victim, except under any of the following circumstances:

1. If he is in imminent danger of being seriously harmed by any person or persons by reason of the accident;
2. If he reports the accident to the nearest officer of the law; or
3. If he has to summon a physician or nurse to aid the victim.

SECTION 5. - Obstruction. -

a) No vehicle shall stop in any public street except near the right-hand curb thereof and so as not to obstruct a crossing, unless in an emergency or to allow another vehicle or pedestrian to cross its path.

b) No motor vehicle with any engine or tire trouble rendering it unable to proceed on its own power, shall obstruct or cause any obstruction or traffic within the City of Davao; and it shall be the duty of the driver or operator of such vehicle to conduct it immediately to the right curb of the street.

c) No repair of any part of any vehicle or engine or tire shall be made on top or on approaches to the bridge.

ARTICLE XV - PENALTIES

SECTION 1. - For violation of this Ordinance, the following penalties shall be imposed:

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Ordinance No. 778, series of 1973, continued:

- a) For over speeding and violation of Keeping
In the Right in violation of Article III of this
Ordinance, a fine to twenty pesos not exceeding fifty
pesos;
- b) For violation of Sections 1, 2 and 3 of
Article IV, overtaking and passing a vehicles and
turning at intersection, a fine of twenty not exceed-
ing one hundred pesos;
- c) For violation of Section 4, Article IV, pro-
hibiting left turn at certain streets, a fine of ten
pesos;
- d) For violation of Article V, One Way Streets
and Thru Streets or Main Streets, a fine of ten pesos;
- e) For violation of Article VI, Right of Way
signals, a fine of ten pesos;
- f) For violation of Article VII, Form of Parking,
a fine of ten pesos;
- g) For violation of Article VIII, Prohibition
Against Improper Sounding of Horns and the use of Siren
or Sirena, a fine of ten pesos;
- h) For violation of Article II, Police Fire Appa-
ratus and Fire Hydrants, Vehicles Abandoned, a fine of
ten pesos;
- i) For violation of Article I, Accessories of
Motor Vehicle, a fine of ten pesos;
- j) For violation of Article XI, Operation of Motor
Vehicles;
 - 1. For operating unregistered motor
vehicles or other vehicles, the provisions
of Republic Act No. 4136, otherwise known

Ordinance No. 778, series of 1973, continued:

as the Land Transportation and Traffic Code shall govern;

2. For failure to sign a driver's license or to carry the same vehicle driving, a fine of twenty pesos;

3. For driving a vehicle with a delinquent or invalid license, a fine of twenty pesos;

4. For driving a motor vehicle with delinquent, suspended or invalid registration, or without proper license for the current year, a fine of two hundred pesos;

5. For driving a motor vehicle without first securing a driver's license, a fine of two hundred pesos;

6. For driving a motor vehicle while under the influence of liquor or narcotic drug, a fine of one hundred pesos or imprisonment of not more than one month or both at the discretion of the Court;

k) For violation of Article XI, Operation of Motor Vehicles except Sections 1 and 2, of said Article XI, a fine of twenty pesos;

1) For violation of Article XII, No Parking Zones and Loading and Unloading Zones, a fine of twenty pesos;

1. For violation by pedestrians of Article XIII, a fine of five pesos for the first offense and ten pesos for succeeding offenses;

2. For violation of Miscellaneous Traffic Rules, Article XIV:

Ordinance No. 778, series of 1973, continued;

1) For violation of Section 1,
Traffic Signals, a fine of twenty pesos;

2) For violation of Section 2,
Reckless driving a fine of fifty pesos;

3) For violation of Sections 1
and 2, a fine of twenty pesos;

4) For violation of Section 3,
Tampering with vehicle, a fine of twenty
pesos;

5) For failure to report in case
of accident as provided for in Section 4,
a fine of one hundred pesos;

6) For violation of Section 5, of
Article XIV, a fine of ten pesos.

For violations of any other provisions of this Ordinance, a fine of ten pesos.

ARTICLE XVI - FINAL PROVISIONS

SECTION 1. - Any ordinance or ordinances which are contrary to or inconsistent with any provision of this Code are hereby repealed.

SECTION 2. - This Code shall take effect upon approval.

ENACTED: November 28, 1973.

ATTESTED:

[Signature]
FILED J. TUNGALAN
Acting Secretary of the Council
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[Signature]
CORNELIO P. MASKARINO
Vice Mayor
Presiding Officer

APPROVED: December 18, 1973

(Sgd.) **LUIS T. SANTOS**
Mayor, City of Davao

ATTESTED: **RAMON B. BELANO, JR.**
Acting City Secretary

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